ZONING PETITION REVIEW REPORT

TO: Pasco County Planning Commission

FILE: ZN09-6882

PETITION #6882

FROM: Debra M. Zampetti
Zoning/Code Compliance Administrator

Commission District #2

Planning Commission

SUBJECT: Special Exception Request
South Central Pasco County
(Cont. from 9/8/09, PC)

Hearing Date: 10/7/09, NPR

APPLICANTS: **CHRISTINE L. TRINSKI AND JOHN P. FELLOWS**

TAZ #287

PETITION SUMMARY:

Petition No. 6882 in the names of Christine L. Trinski and John P. Fellows has been filed for a special exception for a home occupation for pet grooming in an MPUD Master Planned Unit Development District. The property is located on the north side of Glenham Court, approximately 350 feet east of Masfield Boulevard (Parcel ID No. 33-26-20-0150-00000-0050), and contains .22 acre, m.o.l.

The surrounding zoning districts and land uses are as follows:

	Zoning District	Land Use
North:	MPUD Master Planned Unit Development	Retention Area
East:	MPUD Master Planned Unit Development	Single-Family Dwelling
South:	MPUD Master Planned Unit Development	Glenham Court; Single-Family Dwelling
West:	MPUD Master Planned Unit Development	Single-Family Dwelling

FINDINGS OF FACT:

1. Presently, the subject site contains a single-family dwelling; screened-pool enclosure; and a fenced, rear yard. The applicants propose to develop the property with a home occupation for pet grooming.

   The applicants have provided the following information:

   > The proposed activity will consist of a small-scale pet grooming business in my home, with a maximum of four pets per day, by appointment only. Each appointment will be one at a time. I do not expect this schedule to generate vehicle traffic above the level typical in this residential area. I will not have trucks bringing products to my home, with the exception of commercial carriers such as FedEx and UPS that already make regular visits to homes in the area. Other than pets relieving themselves in my fenced backyard and pet owners coming and going, there are no external activities associated with this home occupation.
   >
   > The proposed activity requires no external alterations to the home nor any major internal alterations. I have dedicated one bedroom in my home for this operation which will be converted back to a bedroom at the time my business moves or my home is sold.
   >
   > My intended days and hours of operation are Monday through Friday by appointment only with the first appointment starting at 9:00 a.m. and the last appointment starting at 5:00 p.m. Weekend appointments will be by special request only. Saturday appointments would start at 9:00 a.m. and the last appointment would start at 4:00 p.m.

Sunday appointments would start at 12:00 p.m. and the last appointment would start at 3:00 p.m. This will not be a seven-day weekly operation, but I would like to have these hours available for appointments.

2. Access to the property is from Glenham Court, a homeowner's-maintained road, which has 50 feet of right-of-way.

3. The subject property is located in Flood Zone "X," and development within this area is subject to the requirements of the Land Development Code (LDC), Article 700, Flood Damage Prevention.

4. The surrounding area is characterized by residential development within the Meadow Pointe subdivision.

5. The subject area has been designated RES-3 (Residential - 3 du/ga) under the Comprehensive Plan.

6. Staff has reviewed the proposed request in accordance with the LDC, Article 300, Subsection 303.4.3, Standards for Approval for a Special Exception, and with the applicable provisions of the Pasco County Comprehensive Plan and finds it consistent, as conditioned.

7. On September 4, 2009, staff received a letter of objection from the Meadow Pointe II Community Development District (CDD).

8. On September 8, 2009, the Planning Commission continued the subject special exception request to allow the owners/applicants time to discuss options with representatives from the Meadow Pointe II CDD.

STAFF RECOMMENDATION TO THE PLANNING COMMISSION:

Approval with Conditions

CONDITIONS:

1. The hours of operation for the home occupation for pet grooming shall be from 9:00 a.m. to 5:00 p.m., Monday through Saturday, by appointment only, and shall be limited to four appointments per day. Pet boarding shall be prohibited.

2. This special exception shall be limited to the current co-owner/applicant, Christine L. Trinski, and shall not run with the land. If the property is transferred or sold, the special exception will become null and void.

3. The owners/applicants must comply with the following requirements for a home occupation:

   a. The use does not occupy more than 25 percent of the cumulative floor area.

   b. Only the inhabitants residing in the dwelling are engaged in the occupation.

   c. The use is clearly incidental and secondary to the use of the dwelling.

   d. The exterior appearance of the structure is maintained as a residence.

   e. No goods are publicly displayed on the premises.

   f. Two additional off-street parking spaces must be provided.

4. This property may be subject to deed restrictions which are more restrictive than County regulations. The owners/applicants assume responsibility for compliance with applicable deed restrictions.

5. This approval is subject to the provisions of the LDC, Section 303.5, Review and Revocation of Special Exception Permits. In addition, staff may initiate a revocation for violations of the conditions of approval and/or upon a showing of the criteria outlined in Section 303.5.C.1, Review and Revocation of Special Exceptions and Conditional Use Permits.

6. In addition to complying with the above conditions, no activity shall commence on site until such time as the acknowledgment portion of this document is completed (including notarization) and received by the Zoning/Code Compliance Department after the final action.

OWNERS'/APPLICANTS' ACKNOWLEDGMENT:

The owners/applicants acknowledge that they have read, understood, and accepted the above-listed conditions of approval. **Do not sign until you receive a copy of this petition with the Planning Commission results.**

_____ _____

(Date)

_____

Printed Name

I hereby certify on this _____ day of _____, _____, A.D., before me personally appeared the owners/applicants, to me known to be the persons described in and who executed the foregoing document and severally acknowledged the execution thereof to be their free act and deed for the uses and purposes therein expressed.

Witness my hand and seal at _____, _____ County, Florida, the day and year aforesaid.

My commission expires:

_____ _____

Notary Public, State of _____ at Large

PLANNING COMMISSION ACTION: